

25STCV31940 25STCV31940

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-08-18

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Case Number: 25STCV31940 Hearing Date: August 18, 2026 Dept: 514

Gibbs v. United

Parcel Service, Inc.

25STCV31940

Defendant Marquez Mitchell's Demurrer to First Amended Complaint

Case Management Conference

Tentative

The hearing on the demurrer is continued so that the parties can satisfy the statutory requirement to meet and confer.

The Court will call this matter and proceed with the Case Management Conference.

Background

This case arises out of an employment relationship.

On November 3, 2025, Brittney Gibbs ("Plaintiff") filed the complaint in this action.

On

January 20, 2026, Plaintiff filed the First Amended Complaint (the “FAC”) against United Parcel Service, Inc. (“UPS”), Marquez Mitchell (“Mitchell”), Jim Perez (“Perez”), and Does 1 through 25, asserting causes of action for (1) gender/pregnancy discrimination in violation of the California Fair Employment and Housing Act (the “FEHA”); (2) retaliation in violation of the FEHA; (3) failure to engage in the interactive process in violation of the FEHA; (4) failure to accommodate in violation of the FEHA; (5) failure to prevent discrimination, harassment and retaliation in violation of the FEHA; (6) retaliation in violation of Labor Code section 1102.5; (7) harassment in violation of the FEHA; (8) failure to produce personnel file under Labor Code section 1198.5; and (9) intentional infliction of emotional distress.

On

May 12, 2026, the Court sustained the demurrer of Defendant UPS to the Eighth and Ninth Causes of Action in the FAC (without leave to amend) and overruled UPS’s demurrer to the Seventh Cause of Action.

On

May 26, 2026, Defendant UPS filed its answer to the FAC.

On

June 3, 2026, the Court, at the request of Plaintiff, dismissed Defendant Perez.

On June

4, 2026, Defendant Mitchell filed this demurrer to the FAC. Plaintiff filed an opposition on August 4, and Defendant Mitchell filed a reply on August 11.

No

trial date has been set.

Discussion

Before

filing a demurrer, “the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41, subd. (a).) This requirement is not met. (See Prine Decl., ¶¶ 9-10.)

Accordingly,
the hearing is continued so that the parties may meet and confer as required by statute.

Conclusion

The
Court CONTINUES the hearing on the demurrer of Defendant Marquez Mitchell to September __, 2026, at 8:30 a.m., in Department 514 of the Stanley Mosk Courthouse.

The
Court ORDERS counsel for Plaintiff and for Defendant Mitchell to meet and confer as required by statute no less than 14 days prior to the new hearing date.

The
Court ORDERS counsel for Defendant Mitchell to file a declaration demonstrating compliance with the statutory meet and confer requirement by no later than 7 days prior to the new hearing date.

Moving
party is ordered to give notice.

The
Court will call this case and proceed with the Case Management Conference.